

FOR NEW LICENSES AND TRANSFER
LICENSE AND/OR PERMIT APPLICATION
 FOR LIQUOR, COUNTY MALT BEVERAGE, LIMITED, WINERY OR MICROBREWERY

To be completed by the City, Town or County Clerk:

Date Filed: 12/4/14 R 099654

Basic Fee:	Annual Fee	Prorated Fee
\$ _____	\$ _____	\$ _____
Add'l Dispensing Room Fee:	\$ _____	\$ _____
Transfer Fee:	\$ <u>100.00</u>	\$ _____
Total License Fee Collected	\$ <u>100.00</u>	\$ _____
Publishing Fee Collect:	\$ <u>100.00</u>	\$ _____

Required Attachments Received: Yes ☐

Advertising Dates(4): Dec. 22, 29, 2014

Hearing Date: Jan. 12, 2015

Local Licensing Number: # 38

For the license term: upon issuance
 Month Day Year

Through: March 31, 2015
 Month Day Year

A copy must be immediately forwarded to:
 State of Wyoming Liquor Division
 1520 E 5th Street
 Cheyenne WY 82002-0110

Formerly Held by: KZ Corporation

Applicant: MASON PROPERTIES, INC.

Trade Name (dba): _____

Premise Address: 2801 E. Lincolnway
 Number & Street
Cheyenne WY 82001
 City State Zip County

Mailing Address: 2825 E. Lincolnway
 Number & Street or P.O. Box
Cheyenne WY 82001
 City State Zip

Business Telephone Number: (307) 632-3820

Fax Number: (307) 632-3849

E-Mail Address: wyo.lincolnway@gmail.com

LICENSING AUTHORITY: Begin publishing promptly. As W.S. 12-4-104(d) specifies: **NO LICENSING AUTHORITY SHALL APPROVE OR DENY THE APPLICATION UNTIL THE LIQUOR DIVISION HAS CERTIFIED THE APPLICATION IS COMPLETE.**

FILING FOR ☐ NEW ☐ TRANSFER LOCATION ☒ TRANSFER OWNERSHIP FILING IN (CHOOSE ONLY ONE) ☒ CITY OF <u>CHEYENNE</u> ☐ COUNTY OF _____ FILING AS (CHOOSE ONLY ONE) ☐ INDIVIDUAL ☐ LLC ☐ PARTNERSHIP ☐ LLP ☒ CORPORATION ☐ LTD PARTNERSHIP ☐ ASSOCIATION ☐ ORGANIZATION	TYPE OF LICENSE OR PERMIT (CHOOSE ONLY ONE) ☒ RETAIL LIQUOR LICENSE ☐ on-premise only ☐ off-premise only ☒ combination on/off premise ☐ RESTAURANT LIQUOR LICENSE ☐ RESORT LIQUOR LICENSE ☐ COUNTY RETAIL or SPECIAL MALT BEVERAGE PERMIT ☐ VETERANS CLUB ☐ FRATERNAL CLUB ☐ GOLF CLUB ☐ SOCIAL CLUB ☐ MICROBREWERY ☐ WINERY ☐ BAR AND GRILL ☐ LOCATED WITHIN 5 MILES OF CITY (County License only)	To Assist the Liquor Division with scheduling inspections: DO YOU OPERATE? ☒ FULL TIME (e.g. Jan through Dec) ☐ SEASONAL/PART-TIME (specify months of operation) from <u>Jan</u> to <u>Dec</u> DAYS OF WEEK (e.g. Mon through Sat) <u>7 days</u> HOURS OF OPERATION (e.g. 10a - 2a) <u>9:30 a.m. - 11:00 p.m.</u>
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1. Location of License:

(a) Give a description of the dispensing room and state where it is located in the building (e.g. 10x12 room in SE corner of 1st floor of building). If the building is not in existence, provide the location and an architect's drawing or suitable plans of the room and premises to be licensed: If **Winery or Microbrewery**, also list manufacturing facility. W.S. 12-4-102(a)(i): (Please submit a drawing of dispensing room)

Approx. 2100 Sq Ft. Room (Entire Building)

(b) Do you have an additional dispensing room? ☐ YES ☒ NO If yes, provide description and location:

(c) Provide the legal description and the zoning of the site where the applicant will conduct business:

see attached legal description LOTS 1-20, Block 2, Fairview (CB) Addition

2. Do you W.S. 12-4-103 (a) (iii):

- (1) **OWN** the building in which sales room is located?
 (2) **LEASE** the building in which sales room is located?

☒ YES (own)
☐ YES (lease)

(A) **DATE** lease expires _____ located on page _____ paragraph _____ of lease document.
 (B) Provision for **SALE** of alcoholic or malt beverages located on page _____ paragraph _____ of lease.

NOTE: Attach a true copy of the lease to application. Lease **MUST** contain provision for **SALE OF ALCOHOLIC or MALT BEVERAGES** and be valid **THROUGH** the **TERM OF THE LICENSE** W.S. 12-4-103(a)(iii).

3. Have you already assigned, leased, transferred or do you intend to assign, lease, transfer, contract or in any other manner agree with any person or firm other than yourself as licensee to operate and assert control or partial control of the license and the licensed room to carry on the licensed liquor business? ☒ YES ☐ NO

4. Does any manufacturer, brewer, rectifier, wholesaler, or through a subsidiary affiliate, officer, director or member of any such firm: W.S. 12-5-401, 12-5-402, 12-5-403

- (a) Hold any interest in the license applied for? ☐ YES ☒ NO
 (b) Furnish by way of loan or any other money or financial assistance for purposes hereof in your business? ☐ YES ☒ NO
 (c) Furnish, give, rent or loan any equipment, fixtures, interior decorations or signs other than standard brewery or manufacturer's signs? ☐ YES ☒ NO
 (d) If you answered YES to any of the above, explain fully and submit any documents in connection therewith:

5. Does applicant have any interest or intent to acquire an interest in any other retail liquor license to be issued by this licensing authority? W.S. 12-4-103(b) ☐ YES ☒ NO

If "YES", explain: _____

6. Is applicant a mayor, member of a city or town council, or member of the board of county commissioners within the jurisdiction of this licensing authority? W.S. 12-4-103(a)(i) ☐ YES ☒ NO

7. Is applicant employed by the State, City or Town, or County as a law enforcement officer, or hold office as a law enforcement officer through election? W.S. 12-4-103(a)(ii) ☐ YES ☒ NO

RESTAURANT OR BAR AND GRILL LICENSE: Complete questions 8(a) and 8(b):

8. (a) Have you submitted a valid food service permit upon application? ☐ YES ☐ NO
 W.S. 12-4-407(a) W.S. 12-4-413(a)
 (b) Was your dispensing room for alcoholic and/or malt beverages in existence and open for consumption purposes prior to February 1, 1979? W.S. 12-4-410(b) ☐ YES ☐ NO ☐ N/A

RESORT LICENSE: Complete questions 9(a) through 9(c):

9. (a) Is the actual valuation of the resort complex at least one million dollars, or have you committed or expended at least one million dollars (\$1,000,000.00) on the complex, excluding the value of the land? W.S. 12-4-401(b)(i) ☐ YES ☐ NO
 (b) Does the resort complex include a restaurant and a convention facility which will seat at least one hundred (100) persons? W.S. 12-4-401(b)(ii) ☐ YES ☐ NO
 (c) Does the resort complex include motel or hotel accommodations with at least one hundred (100) sleeping rooms? W.S. 12-4-401(b)(iii) ☐ YES ☐ NO

MICROBREWERY AND/OR WINERY LICENSE: Complete questions 10 through 11:

10. Is premise to be co-existent with a retail, restaurant, resort or bar and grill liquor license? W.S. 12-4-412(b)(iii) ☐ YES ☐ NO

If "YES", please specify type: ☐ Microbrewery ☐ Winery ☐ Retail
☐ Restaurant ☐ Resort ☐ Bar & Grill:

11. (a) Do you self distribute your products? ☐ YES ☐ NO
 (b) Do you distribute your products through an existing malt beverage wholesaler? ☐ YES ☐ NO

ORGANIZATION AND/OR CLUB LICENSE: Complete questions 12 through 15 as applicable:

12. **FRATERNAL CLUBS** W.S. 12-1-101(a)(iii)(B)

- (a) The name and address of the grand lodge or national organization is: _____
 (b) Does lodge or fraternal organization hold a charter from a national organization or national grand lodge? ☐ YES ☐ NO
 (c) Has the fraternal organization been actively operating in at least thirty-six (36) states? ☐ YES ☐ NO
 (d) Has the fraternal organization been actively in existence for at least twenty (20) years? ☐ YES ☐ NO

13. **VETERANS CLUBS** W.S. 12-1-101(a)(iii)(A):

- (a) The name and address of the National Veterans organization is: _____
 (b) Has the Veteran's organization been chartered by the Congress of the United States for patriotic, fraternal or benevolent purposes? ☐ YES ☐ NO
 (c) Is the membership of the Veteran's organization comprised only of Veterans and its duly organized auxiliary? ☐ YES ☐ NO

14. SOCIAL CLUBS W.S. 12-1-101(a)(iii)(E):

- (a) Do you have more than one hundred (100) bona fide members who are residents of the county in which the club is located? ☐ YES ☐ NO
- (b) Is the club incorporated and operating solely as a nonprofit organization under the laws of this state? ☐ YES ☐ NO
- (c) Is the club qualified as a tax exempt organization under the Internal Revenue Service? ☐ YES ☐ NO
- (d) Has the club been in continuous operation for a period of not less than one (1) year? ☐ YES ☐ NO
- (e) Has the club received twenty-five dollars (\$25.00) from each bona fide member as recorded by the secretary of the club and are club members at the time of this application in good standing by having paid at least one (1) full year in dues? ☐ YES ☐ NO
- (f) Does the club hold quarterly meetings and have an actively engaged membership carrying out the objectives of the club? ☐ YES ☐ NO
- (g) Have you filed a true copy of your bylaws with the local licensing authority and the Wyoming Liquor Division? ☐ YES ☐ NO
- (h) Has at least fifty one percent (51%) of the membership signed a petition indicating a desire to secure a Limited Retail Liquor License?
(THE PETITION MUST BE ATTACHED TO APPLICATION) ☐ YES ☐ NO
- (i) Have you filed with the licensing authority and the Wyoming Liquor Division a detailed statement of your activities during the preceding year which were undertaken or furthered in pursuit of the objectives of the club, along with an itemized statement expended for such activities? ☐ YES ☐ NO

15. GOLF CLUBS W.S. 12-1-101(a)(iii)(D):

- (a) Do you have more than fifty (50) bona fide members? ☐ YES ☐ NO
- (b) Do you own, maintain, or operate a bona fide golf course together with clubhouse? ☐ YES ☐ NO

- 16. (a) If applicant is an Individual or Partnership:** State the name, date of birth and residence of each applicant or partner, if the application is made by more than one individual or by a partnership.
If the application is for a Club: State the name, date of birth and residence of each officer.

True and Correct Name	Date of Birth	DONOT LIST PO BOXES Residence Address No. & Street City, State & Zip	Residence Phone Number	Have you been a DOMICILED resident for at least 1 year and not claimed residence in any other state in the last year?	Have you been Convicted of a Felony Violation?	Have you been Convicted of a Violation Relating to Alcoholic Liquor or Malt Beverages?
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐

(If more information is required, list on a separate piece of paper and attach to this application.)

- (b) If the applicant is a Corporation, Limited Liability Company, Limited Liability Partnership or Limited Partnership:** State the name, date of birth and residence of each stockholder holding, either jointly or severally, ten percent (10%) or more of the outstanding and issued capital stock of the corporation, limited liability company, limited liability partnership, or limited partnership, and every officer, and every director.

True and Correct Name	Date of Birth	DONOT LIST PO BOXES Residence Address No. & Street City, State & Zip	Residence Phone Number	No. of Years in Corp or LLC	% of Stock Held	Have you been Convicted of a Felony Violation?	Have you been Convicted of a Violation Relating to Alcoholic Liquor or Malt Beverages?
						YES ☐ NO ☐	YES ☐ NO ☐
John M. Mason	2-12-52	1510 McAllister LN Cheyenne, WY 82001	307-637-7264	10	50%	YES ☐ NO ☒	YES ☐ NO ☒
Sharlene G. MASON	4-17-52	1510 McAllister LN. Cheyenne, WY 82001	307-637-7264	10	50%	YES ☐ NO ☒	YES ☐ NO ☒
						YES ☐ NO ☐	YES ☐ NO ☐
						YES ☐ NO ☐	YES ☐ NO ☐
						YES ☐ NO ☐	YES ☐ NO ☐
						YES ☐ NO ☐	YES ☐ NO ☐

(If more information is required, list on a separate piece of paper and attach to this application.)

OATH OR VERIFICATION

(Requires signatures by **ALL** Individuals, **ALL** Partners, **ONE (1)** LLC Member, or **TWO (2)** Corporate Officers or Directors except that if all the stock of the corporation is owned by **ONE (1)** individual then that individual may sign and verify the application upon his oath, or **TWO (2)** Club Officers.) W.S. 12-4-102(b)

Under penalty of perjury, and the possible revocation or cancellation of the license, I swear the above stated facts, are true and accurate.

STATE OF WYOMING)

SS.

COUNTY OF Laramie)

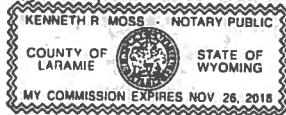
Before Me, Kenneth R. Moss, (specify)
(Printed name of Notary or other officer authorized to administer oaths)

a Notary Public, Officer authorized to administer oaths in and for
Laramie County, State of Wyoming, personally appeared

John M. Mason, Sharlene G. Mason name he/she being first duly sworn
(Insert Names)

by me upon his oath, says that the facts alleged in the foregoing instrument are true.

(Seal)



1. John M. Mason
2. Sharlene G. Mason
3. _____
4. _____

My Commission expires: November 26, 2018

Witness my hand and official seal:

Kenneth R. Moss
(Notary Public or other officer authorized to administer oaths)

Title Manager Notary

Dated: 12-02-2014

REQUIRED ATTACHMENTS:

- (a) Attach any lease agreements W.S. 12-4-103 (a) (iii).
- (b) If the building is not in existence, an architect's drawing or suitable plans of the room and the premises to be licensed must be attached W.S. 12-4-102 (a) (i).
- (c) A statement indicating the financial condition and financial stability of the applicant W.S. 12-4-102 (a) (v).
- (d) Restaurant or Bar & Grill Liquor License applicants must include a copy of the CURRENT food service permit W.S. 12-4-407 (a) or 12-4-413 (a).
- (e) Include a drawing of the dispensing room W.S. 12-5-201 (a).
- (f) Check or bank draft as payment for the application and publishing the notice of application (Direct billing is permissible for publication fees) W.S. 12-4-101-4 (a).
- (g) If transferring a license from one ownership to another, a form of assignment from the current licensee to the new applicant authorizing the transfer W.S. 12-4-601 (b).

ADVERTISING REQUIREMENTS W.S. 12-4-104(a):

When an application for a license, permit, renewal or any transfer of location or ownership thereof has been filed with a licensing authority, the clerk shall promptly prepare a notice of application, place the notice conspicuously upon the premises shown by the application as the proposed place of sale and public the notice in a newspaper of local circulation once a week for four (4) consecutive weeks. The notice shall state that a named applicant has applied for a license, permit, renewal or transfer thereof, and that protests against the issuance, renewal, or transfer of the license or permit will be heard at a designated meeting of the licensing authority.

FOR LIQUOR DIVISION USE ONLY		
Reviewer	Initials	Date
Agent:		
Chief:		
Acct.:		

To: Honorable Mayor Rick Kaysen
Members of the City Council
City of Cheyenne
From: John Mason, Mason Properties, Inc.
Re: Transfer of liquor license

To Whom It May Concern;

This letter is an attempt to explain my plans for the liquor license we are purchasing / transferring from KZ Corporation to Mason Properties, Inc.

I have purchased back the real property at 2801 E. Lincolnway (formerly known as Goofy's). I owned the property from 1983 to 1997 when I sold it to KZ Corporation. Donna Keeney of KZ Corporation approached me to buy the property, including the liquor license back a few weeks ago. We have completed the sale.

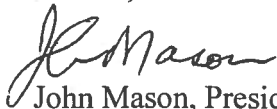
Enclosed, please find a drawing showing our intent for the property to be re-developed. As you may know, we have just completed a \$700,000+ remodeling on the adjoining property at 2813 - 2825 E. Lincolnway. Our plan is to demolish the octagonal building, previously known as Goofy's or Daisy Dukes and to replace the building with a 6,500 s.f. commercial property to house three businesses.

We intend to lease at least two of the properties. We plan on using the liquor license in the unit on the West end of the property (2801). We envision a walk in and drive thru package liquor store with approximately 2,100 - 2,200 s.f. We may consider a small dispensing room for 6 - 10 patrons (space provided). I'd like to keep my options open on whether we operate this liquor store / lounge or lease it.

I feel it important to mention that I had this liquor license for approximately 14 years. I was a past president of the Cheyenne Liquor Dealer's Association and I assure you I appreciate the responsibilities of owning a liquor license.

Please feel free to contact me with any questions you may have regarding this proposal. Thank you for your anticipated cooperation in the transfer of this license back to me.

Thanks,



John Mason, President
Mason Properties, Inc.
(cell) 307-421-5847

Honorable Mayor Rick Kaysen
Member of the City Council
City of Cheyenne
2101 O'Neill Avenue
Cheyenne, WY 82001

RE: City of Cheyenne Liquor License #38

Dear Governing Body:

Due to a change in my circumstances I have decided to sell my business property which was the location of Goofy's which operated Cheyenne Liquor License #38. The property is being sold to Mason Properties, Inc. I request that Liquor License #38 presently held by KZ Corporation be transferred to the purchaser of the real property, Mason Properties, Inc.

Thank you for your favorable consideration of my request.

KZ Corporation

By:



Date: 11/24/2004

MASON PROPERTIES, INC.
FINANCIAL STATEMENT

AS OF: 10/31/2014

ASSETS:

Cash on hand and in banks:	13,000
Real Estate Owned - itemized:	
2400 E. Lincolnway	
9,561 s.f. @ 85.00	812,685
2404 E. Lincolnway	
1,480 s.f. @ 20.00	29,600
land @ (7,210) @ 16.00	115,360
2801 E. Lincolnway	
land @ (25,500) @ 16.00	408,000
2813 - 2825 E. Lincolnway	
22,565 s.f. @ 120.00	2,700,000
6508 S. College (F.C. CO)	
8,680 s.f. @ 105.00	911,400
TOTAL ASSETS:	<u>4,990,045</u>

LIABILITIES:

Accounts & bills due:	0
Notes payable to financial institutions:	
Platte Valley Bank, Cheyenne properties	2,065,000
monthly payment:	13,500
Centennial Lending, Ft. Collins property	450,000
monthly payment:	2,933
Notes payable to others:	0
	<u>2,515,000</u>
TOTAL LIABILITIES:	2,515,000
NET WORTH:	2,475,045
TOTAL LIABILITIES AND NET WORTH:	<u>4,990,045</u>

STATE OF WYOMING
Office of the Secretary of State

I, MAX MAXFIELD, SECRETARY OF STATE of the STATE OF WYOMING, do hereby certify that according to the records of this office,

Mason Properties, Inc.

is a

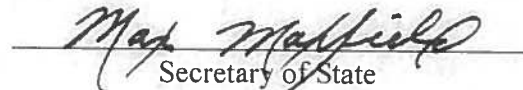
Profit Corporation

formed or qualified under the laws of Wyoming did on **October 19, 2006**, comply with all applicable requirements of this office. Its period of duration is Perpetual. This entity has been assigned entity identification number **2006-000523893**.

This entity is in existence and in good standing in this office and has filed all annual reports and paid all annual license taxes to date, or is not yet required to file such annual reports; and has not filed Articles of Dissolution.

I have affixed hereto the Great Seal of the State of Wyoming and duly generated, executed, authenticated, issued, delivered and communicated this official certificate at Cheyenne, Wyoming on this 3rd day of December, 2014 at 3:55 PM. This certificate is assigned 016756930.




Secretary of State

Notice: A certificate issued electronically from the Wyoming Secretary of State's web site is immediately valid and effective. The validity of a certificate may be established by viewing the Certificate Confirmation screen of the Secretary of State's website <http://wyobiz.wy.gov> and following the instructions displayed under Validate Certificate.

Taxpayer Identification		Lien NO: 41723 Laramie	
Owner: KZ CORPORATION DBA: DAISEY DUKES			
2801 E LINCOLNWAY CHEYENNE WY 820010000		SSN: (last 4 digits) FEIN:	
Sales Tax License No: 02-0-06165		Owner RID Number: 123290	
Date/Time Lien Filed	County of Recordation or Filing	Book/Page Number	Instrument/Document Number
Date: 02/22/2010 Time: 11:47:00 AM	Laramie	Book: 2152 Page: 326	Instrument: Document: 539503



Kerr (K)

[illegible]

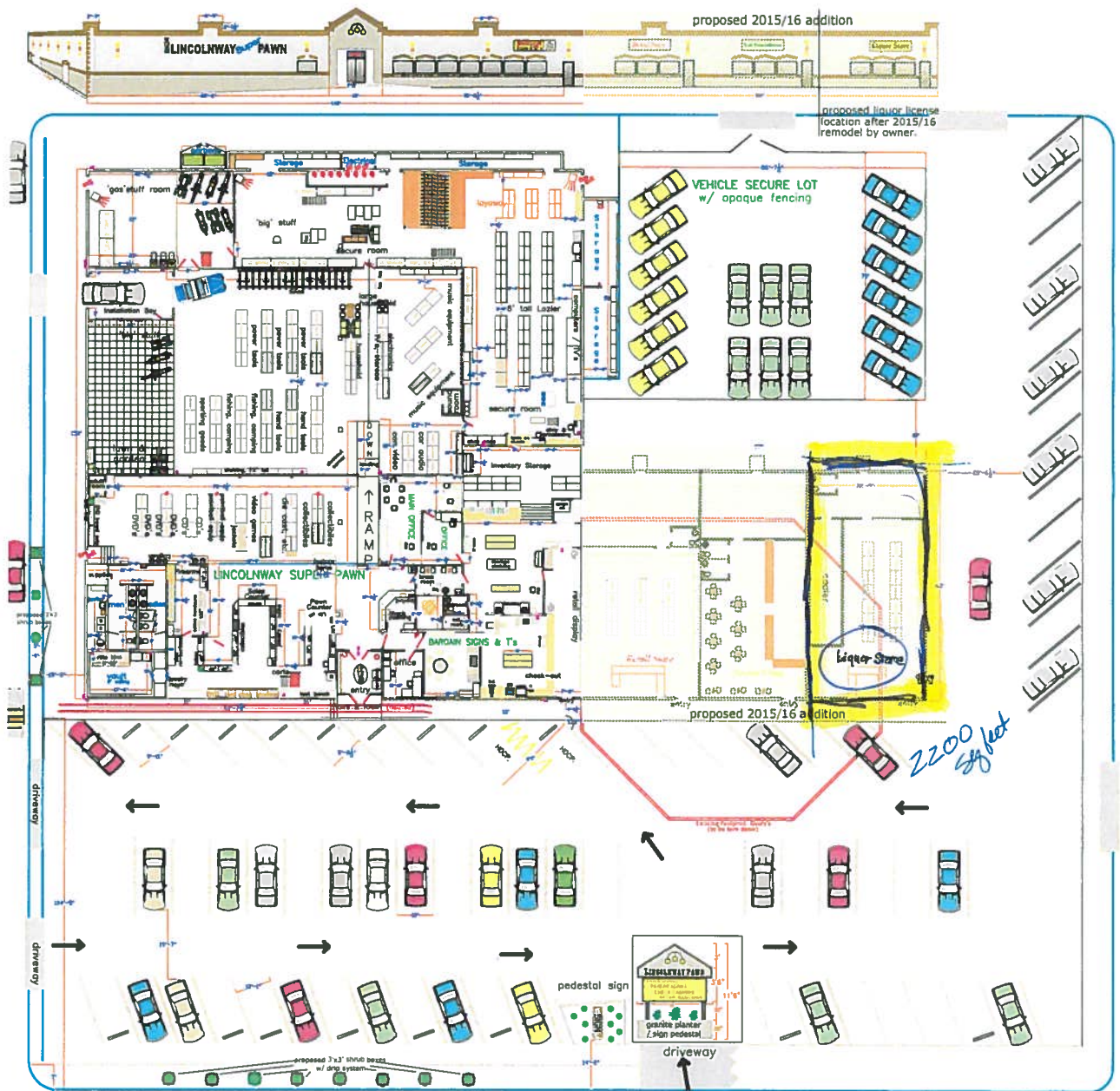
Kerry Lamb
Vendor/Taxpayer Operations Supervisor
Excise Tax Division
307-777-5215

Witness my hand and official seal.

Seal

Rita Carr
Notary Public





PROPOSED FOOTPRINT 2801-2825 E. LINCOLNWAY -after 2014 remodel and proposed 2015/16 addition